

SAAS PLATFORM LICENSE AGREEMENT

Contract Reference: SAAS-2026-CS-AUTO-001

PARTIES

This SaaS Platform License Agreement ('Agreement') is entered into as of **1 September 2026** by and between **CloudSecure GmbH**, a company incorporated in Germany (Registration No. **DE-55443322**), with its principal office at Hauptstrasse 42, 80331 Munich, Germany ('Vendor'), and **Flat Rock Technology Ltd**, a company registered in England and Wales ('Client').

VENDOR REGISTRY STATUS

CloudSecure GmbH is registered as a **Tier 1 Approved Vendor** in the Client's Approved Vendors Registry (Registry ID: CS-T1-2023-007, valid through 2026-12-31). All due diligence checks, including financial stability review, security audit, and reference checks, were completed and passed with no adverse findings. Vendor contact: Klaus Weber, CEO (k.weber@cloudsecure.de, +49 89 555 0100).

1. SERVICES

Vendor shall provide cloud-hosted data analytics SaaS platform services, including: (a) real-time business intelligence dashboards; (b) automated reporting and data exports; (c) REST API access for third-party integrations; (d) dedicated customer success management; and (e) standard 9-to-5 technical support with emergency out-of-hours coverage for P1 incidents. No custom software development is involved — this is a standard SaaS subscription. No source code escrow is required or applicable under this Agreement.

2. CONTRACT TERM & FINANCIAL TERMS

Field	Value
Contract Type	SaaS Platform License Agreement
Annual License Fee	USD 45,000
Total Contract Value	USD 45,000 (12-month initial term)
Contract Start Date	2026-09-01
Contract End Date	2027-08-31
Auto-Renewal	No — manual renewal required
Payment Terms	Net-30 — invoiced quarterly in arrears
Payment Schedule	Quarterly in arrears: USD 11,250 per quarter
Notice Period	60 days written notice for termination for convenience

Modern Slavery Act 2015 compliance note: The annual contract value is USD 45,000, which is below the USD 100,000 threshold requiring a formal Modern Slavery Act statement. Accordingly, no Modern Slavery attestation is required for this Agreement. Vendor voluntarily confirms that its supply chain practices comply with the Act.

3. SERVICE LEVEL AGREEMENT

SLA Parameter	Commitment
Platform Uptime	99.9% monthly (Nines SLA)
P1 Incident Response	Within 1 hour (24/7)
P2 Incident Response	Within 4 hours (business hours)
Scheduled Maintenance	48-hour advance notice; max 4 hours/month
SLA Penalty	5% monthly fee credit per 0.1% uptime shortfall
SLA Reporting	Monthly uptime report delivered by 5th of following month

4. LIABILITY & INDEMNIFICATION

Each party's total aggregate liability under this Agreement shall not exceed **USD 90,000** (equivalent to 2x annual contract value), except for: (i) death or personal injury caused by negligence; (ii) fraud or fraudulent misrepresentation; and (iii) breaches of data protection obligations. Vendor provides intellectual property indemnification. Mutual indemnification for negligence. Consequential, indirect, or punitive damages are excluded. Vendor maintains professional indemnity insurance of **USD 5,000,000** and public liability insurance of **USD 2,000,000** — certificates provided to Client prior to execution.

5. DATA PROTECTION & SECURITY

5.1 GDPR Compliance: Vendor processes all personal data in accordance with the UK GDPR and Data Protection Act 2018. A Data Processing Agreement (DPA) is attached as Annexure A and forms part of this Agreement. All processing occurs within the UK and EEA.

5.2 Security Certifications: Vendor holds current SOC 2 Type II certification (Certificate No. CS-SOC2-2025-007, issued by PwC GmbH, valid through 2026-12-31) and ISO/IEC 27001:2022 certification (Certificate No. CS-ISO27001-2024-012, issued by TÜV Rheinland, valid through 2027-06-30). Copies of current certificates have been provided to Client's information security team and are maintained in the Vendor Registry.

5.3 Penetration Testing: Vendor conducts annual third-party penetration testing of all platform components. Most recent test completed February 2026 by NCC Group (Report Ref: NCCG-2026-CS-031). No critical or high-severity findings. Summary report shared with Client information security team on 2026-03-05. Next test scheduled Q1 2027.

5.4 Security Breach Notification: In the event of a confirmed personal data breach, Vendor shall notify Client within **72 hours** of becoming aware, in accordance with UK GDPR Article 33. Notification shall include details of the breach, categories of data affected, likely consequences, and remediation measures taken.

5.5 Audit Rights: Client may audit Vendor's relevant security controls with 30 days' written notice, limited to once per calendar year and at Client's cost. Vendor will provide reasonable access and documentation to support such audit.

6. INTELLECTUAL PROPERTY

Vendor retains all intellectual property rights in and to the platform, software, and documentation. Client retains full ownership of: (a) all Client data uploaded to or generated through the platform; (b) all outputs, reports, and exports produced; and (c) any Client-specific configurations. Source code escrow is not

applicable to this Agreement as no custom software development is provided.

7. TERMINATION

7.1 Termination for Convenience: Either party may terminate this Agreement without cause by providing **60 days** prior written notice. Client shall receive a pro-rated refund of any pre-paid fees for the unused portion of the notice period. **7.2 Termination for Cause:** Either party may terminate immediately upon written notice if the other party commits a material breach that remains uncured for 30 days after notice, or upon insolvency, liquidation, or cessation of business.

8. GOVERNING LAW & DISPUTE RESOLUTION

This Agreement is governed by and construed in accordance with the laws of **England and Wales**. Any dispute shall first be referred to senior management of both parties for good-faith resolution (mediation, 30 days). Failing resolution, disputes shall be submitted to final and binding arbitration under the Rules of the **London Court of International Arbitration (LCIA)**, seated in London, England.

SIGNATORIES

For and on behalf of **CloudSecure GmbH**: Klaus Weber, Chief Executive Officer —
k.weber@cloudsecure.de | Date: 2026-08-15

For and on behalf of **Flat Rock Technology Ltd**: Sarah Thompson, Chief Procurement Officer —
s.thompson@flatrocktech.com | Date: 2026-08-18